

place to do that act, where it will be less offensive. So also, if my neighbour ought to scour a ditch, and does not, whereby my land is overflowed, this is an actionable nuisanceⁱ.

WITH regard to *other* corporeal hereditaments: it is a nuisance to stop or divert water that uses to run to another's meadow or mill^k; to corrupt or poison a water-course, by erecting a dye-house or a lime-pit for the use of trade, in the upper part of the stream^l; or in short to do any act therein, that in it's consequences must necessarily tend to the prejudice of one's neighbour. So closely does the law of England enforce that excellent rule of gospel-morality, of "doing to others, as we would they should do unto ourselves."

2. As to *incorporeal* hereditaments, the law carries itself with the same equity. If I have a way, annexed to my estate, across another's land, and he obstructs me in the use of it, either by totally stopping it, or putting logs across it, or ploughing over it, it is a nuisance: for in the first case I cannot enjoy my right at all, and in the latter I cannot enjoy it so commodiously as I ought^m. Also, if I am entitled to hold a fair or market, and another person sets up a fair or market so near mine that it does me a prejudice, it is a nuisance to the freehold which I have in my market or fairⁿ. But in order to make this out to be a nuisance, it is necessary, 1. That my market or fair be the elder, otherwise the nuisance lies at my own door. 2. That the market be erected within the third part of twenty miles from mine. For sir Matthew Hale^o construes the *dieta*, or reasonable day's journey, mentioned by Bracton^p, to be twenty miles: as indeed it is usually understood not only in our own law^q, but also in the civil^r, from which we probably borrowed it. So that if the new market be

ⁱ Hale on F. N. B. 427.

^k F. N. B. 184.

^l 9 Rep. 59. 2 Roll. Abr. 141.

^m F. N. B. 183. 2 Roll. Abr. 140.

ⁿ F. N. B. 184. 2 Roll. Abr. 140.

^o on F. N. B. 184.

^p l. 3. c. 16.

^q 2 Inst. 567.

^r *Eff.* 2. 11. 1.

not within seven miles of the old one it is no nuisance: for it is held reasonable that every man should have a market within one third of a day's journey from his own home; that, the day being divided into three parts, he may spend one part in going, another in returning, and the third in transacting his necessary business there. If such market or fair be on the same day with mine, it is *prima facie* a nuisance to mine, and there needs no proof of it, but the law will intend it to be so: but if it be on any other day, it *may be* a nuisance; though whether it *is* so or not, cannot be intended or presumed, but I must make proof of it to the jury. If a ferry is erected on a river, so near another antient ferry as to draw away its custom, it is a nuisance to the owner of the old one. For where there is a ferry by prescription, the owner is bound to keep it always in repair and readiness, for the ease of all the king's subjects; otherwise he may be grievously amerced^c: it would be therefore extremely hard, if a new ferry were suffered to share his profits, which does not also share his burthen. But, where the reason ceases, the law also ceases with it: therefore it is no nuisance to erect a mill so near mine, as to draw away the custom, unless the miller also intercepts the water. Neither is it a nuisance to set up any trade, or a school, in neighbourhood or rivalry with another: for by such emulation the public are like to be gainers; and, if the new mill or school occasion a damage to the old one, it is *damnum absque injuria*^c.

II. LET us next attend to the remedies, which the law has given for this injury of nuisance. And here I must premise that the law gives no *private* remedy for any thing but a *private* wrong. Therefore no *action* lies for a public or common nuisance, but an *indictment* only: because the damage being common to *all* the king's subjects, no *one* can assign his particular proportion of it; or, if he could, it would be extremely hard, if every subject in the kingdom were allowed to harass the offender with separate actions. For this reason, no person, natural

^c 2 Roll. Abr. 140.

^c Hale on F. N. B. 184.

or corporate, can have an action for a public nuisance, or punish it; but only the king in his public capacity of supreme governor, and *pater-familias* of the kingdom^u. Yet this rule admits of one exception; where a private person suffers some extraordinary damage, beyond the rest of the king's subjects, by a public nuisance: in which case he shall have a private satisfaction by action. As if, by means of a ditch dug across a public way, which is a common nuisance, a man or his horse suffer any injury by falling therein; there, for this particular damage, which is not common to others, the party shall have his action^w. Also if a man hath abated, or removed, a nuisance which offended him (as we may remember it was stated, in the first chapter of this book, that the party injured hath a right to do) in this case he is entitled to no action^x. For he had choice of two remedies; either without suit, by abating it himself, by his own mere act and authority; or by suit, in which he may both recover damages, and remove it by the aid of the law: but having made his election of one remedy, he is totally precluded from the other.

THE remedies by suit, are, 1. By action *on the case* for damages; in which the party injured shall only recover a satisfaction for the injury sustained; but cannot thereby remove the nuisance. Indeed every continuance of a nuisance is held to be a fresh one^y; and therefore a fresh action will lie, and very exemplary damages will probably be given, if, after one verdict against him, the defendant has the hardness to continue it. Yet the founders of the law of England did not rely upon probabilities merely, in order to give relief to the injured. They have therefore provided two other actions; the *assise of nuisance*, and the writ of *quod permittat prosternere*: which not only give the plaintiff satisfaction for his injury past, but also strike at the root and remove the cause itself, the nuisance that occasioned the injury. These two actions however can only be brought by the

^u Vaugh. 341, 342.

^w Co. Litt. 56. 5 Rep. 73.

^x 9 Rep. 55.

^y 2 Leon. pl 129. Cro. Eliz. 402.

tenant of the freehold ; so that a lessee for years is confined to his action upon the case².

2. AN *assise of nuisance* is a writ, wherein it is stated that the party injured complains of some particular fact done, *ad nocumentum liberi tenementi sui*, and therefore commanding the sheriff to summon an assise, that is, a jury, and view the premises, and have them at the next commission of assises, that justice may be done therein^a: and, if the assise is found for the plaintiff, he shall have judgment of two things ; 1. To have the nuisance abated ; and 2. To recover damages^b. Formerly an assise of nuisance only lay against the very wrongdoer himself who levied, or did, the nuisance ; and did not lie against any person to whom he had aliened the tenements, whereon the nuisance was situated. This was the immediate reason for making that equitable provision in statute Westm. 2. 13 Edw. I. c. 24. for granting a similar writ, *in casu consimili*, where no former precedent was to be found. The statute enacts, that “*de caetero non recedant querentes a curia domini regis, pro eo quod tenementum transfertur de uno in alium ;*” and then gives the form of a new writ in this case : which only differs from the old one in this, that, where the assise is brought against the very person only who levied the nuisance, it is said, “*quod A. (the wrongdoer) injuste levavit tale nocumentum ;*” but, where the lands are aliened to another person, the complaint is against both ; “*quod A. (the wrongdoer) et B. (the alienee) levaverunt*”^c. For every continuation, as was before said, is a fresh nuisance ; and therefore the complaint is as well grounded against the alienee who continues it, as against the alienor who first levied it.

3: BEFORE this statute, the party injured, upon any alienation of the land wherein the nuisance was set up, was driven to his *quod permittat profertere* ; which is in the nature of a

² Finch. L. 289.

^a F. N. B. 183.

^b 9 Rep. 55.

^c *Ibid.*